

19671100	Heading: 3926.90.90	Status: F
Instrument:	Date: 21/12/2009	Change_Date:
Description:	Reason:	
Inflatable plastic mattresses, cushions or pillows.	Excluded from Chapter 94 by Chapter 94 Note 1(d). Classified as other articles of plastic.	

19671200	Heading: 3926.90.90	Status: F
Instrument:	Date: 21/12/2009	Change_Date:
Description:	Reason:	
Plastic belt buckles.	Considered to be a part for a clothing accessory rather than a clothing accessory. Classified as an 'other article of plastic'.	

End of Chapter 39 **Number of records for Chapter: 10**

Section VII – PLASTICS AND ARTICLES THEREOF; RUBBER AND ARTICLES THEREOF

Chapter 40 Rubber and articles thereof

19875700	Heading: 4011.10.00	Status: F
Instrument:	Date: 2/07/2010	Change_Date:
Description:	Reason:	
New pneumatic tyres for use on four-wheel drive vehicles.	While four wheel drive vehicles, that fit the criteria in Chapter 87 Additional Note 4, are not classified as passenger motor vehicles for the purposes of 8703, they remain motor vehicles.	
	Classification of new pneumatic tyres for these vehicles falls to 4011.10.00 which covers new pneumatic tyres, of rubber, of a kind used on motor cars (including station wagons and racing cars).	

End of Chapter 40 **Number of records for Chapter: 1**

Section VIII – RAW HIDES AND SKINS, LEATHER, FURSKINS AND ARTICLES THEREOF; SADDLERY AND HARNESS; TRAVEL GOODS, HANDBAGS AND SIMILAR CONTAINERS; ARTICLES OF ANIMAL GUT (OTHER THAN SILK-WORM GUT)

Chapter 42 Articles Of leather; saddlery and harness; travel goods, handbags and similar containers; articles of animal gut (other than silk-worm gut)

19576600	Heading: 4202.19.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date:
Description:	Reason:	
Steel suitcase	Trunks, suit-cases, vanity-cases, executive-cases, brief-cases, school satchels, spectacle cases, binocular cases, camera cases, musical instrument cases, gun cases, holsters and similar containers of 4202 (the goods preceding the semi-colon) can be made of any material with only three exceptions. Products made of netting is excluded by Chapter 42 Note 2(c). Goods made of plaiting materials are excluded from 4202 by Chapter 42 Note 3(A)(b). Chapter 42 Note 3(B) also excludes from 4202 goods where the essential character of the good is given by materials of	

Chapter 71. Therefore suitcases of base metals remain classifiable in 4202.

19726900	Heading: 4202.31.10	Status: F
Instrument:	Date: 17/02/2010	Change_Date:
Description:	Reason:	
Leather document holder, also known as a travel wallet, being a small, book-like folding case for carrying papers, passport, airline tickets, credit cards etc in the pocket or handbag.	The term wallet also covers document holders of this nature.	
19726800	Heading: 4202.92.90	Status: F
Instrument:	Date: 17/02/2010	Change_Date:
Description:	Reason:	
Backpacks with novelty shapes, for example animal head shaped bags, or with decorative illustrations or representations of cartoon, film, television or toy characters.	Backpacks are a specific utilitarian article. While the addition of decorative elements or alterations of shape may make them more attractive to children or others, they do not become a toy but remain a backpack of 4202.92.90.	
19727000	Heading: 4202.99.00	Status: F
Instrument:	Date: 17/02/2010	Change_Date:
Description:	Reason:	
Plastic case designed for storing an archery bow or bows and related equipment. These cases are specially shaped or fitted to house the contents securely and are made of moulded plastics.	These goods are similar containers to binocular cases, camera cases, musical instrument cases or gun cases.	
This only covers the cases when imported without the bow/s and related equipment.	As they are covered by the first part of the description of heading 4202 (preceding the semi-colon), they are not subject to the restriction on materials that are provided for those containers in the second part of the description of heading 4202 (following the semi-colon).	
	The cases fall to 4202.9 and being made of moulded plastic, without an outer surface of plastic sheeting or other material, they fall to 4202.99.00.	
19576700	Heading: 4203.21.90	Status: F
Instrument:	Date: 9/10/2009	Change_Date:
Description:	Reason:	
Sporting gloves of leather or composition leather, including boxing gloves and cricket gloves.	While Chapter 42 excludes "Articles of Chapter 95 (for example, toys, games, sports requisites);" in Chapter 42 Note 1(I), it specifically includes sporting gloves in Chapter 42 Note 4 where it states in relevant part: "For the purposes of 4203, "articles of apparel and clothing accessories" applies, inter alia, to gloves, mittens and mitts (including those for sport or for protection), ...". Leather sporting gloves, without furskin or artificial fur, fall to 4203.21.90	
End of Chapter 42	Number of records for Chapter: 5	

Where there is not detectable change to the base fabric, then Note 6 applies and the fabric is excluded from 5907. This substance of this Opinion also applies in regard to 5903.

End of Chapter 59

Number of records for Chapter: 1

Section XI – TEXTILES AND TEXTILE ARTICLES

Chapter 61

Articles of apparel and clothing accessories, knitted or crocheted

19577600	Heading: 6103.41.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted knitted or crocheted trousers and shorts designed for males (men or boys) being trousers or shorts of wool or fine animal hair incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19577700	Heading: 6103.42.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted trousers and shorts designed for males (men or boys) being cotton trousers or shorts incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19577800	Heading: 6103.43.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted knitted or crocheted trousers and shorts designed for males (men or boys) being trousers or shorts of synthetic fibres, incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19577900	Heading: 6103.49.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted knitted or crocheted trousers and shorts designed for males (men or boys) being trousers or shorts of fibres other than those covered by the previous subheading of 6103.4, incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	

19578000	Heading: 6104.61.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of wool or fine animal hair incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19578100	Heading: 6104.62.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted trousers and shorts designed for females (women or girls) or for unisex use, being cotton trousers or shorts incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19578200	Heading: 6104.63.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of synthetic fibres incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19578300	Heading: 6104.69.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of fibres other than those covered by the previous subheadings of 6104.6, incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	
19578400	Heading: 6105.10.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Shirt and tie set packed for retail sale – with the shirt being a man or boy's cotton shirt, knitted or crocheted.	As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations,	

imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Chapter 61 Note 4 specifies that a shirt is a garment designed to cover the upper part of the body, having long or short sleeves, a full or partial opening at the neckline and that may have a collar.

Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19578500	Heading: 6105.20.00	Status: F	
Instrument:	Date:	9/10/2009	Change_Date: 9/10/2009
Description:	Reason:		
Shirt and tie set packed for retail sale – with the shirt being a man or boy’s shirt of man-made fibres, knitted or crocheted.		As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Chapter 61 Note 4 specifies that a shirt is a garment designed to cover the upper part of the body, having long or short sleeves, a full or partial opening at the neckline and that may have a collar.	
		Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.	
19578600	Heading: 6105.90.00	Status: F	
Instrument:	Date:	9/10/2009	Change_Date: 9/10/2009
Description:	Reason:		
Shirt and tie set packed for retail sale – with the shirt being a man or boy’s shirt of other textile materials, knitted or crocheted.		As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.	
19578700	Heading: 6106.10.00	Status: F	
Instrument:	Date:	9/10/2009	Change_Date: 9/10/2009
Description:	Reason:		
Shirt and tie set packed for retail sale – with the shirt being a woman or girl’s cotton shirt, knitted or crocheted.		As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.	

19578800	Heading: 6106.20.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Shirt and tie set packed for retail sale – with the shirt being a woman or girl's shirt of man-made fibres, knitted or crocheted.	As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.	
19579000	Heading: 6106.90.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Shirt and tie set packed for retail sale – with the shirt being a woman or girl's shirt of other textile materials, knitted or crocheted.	As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.	
19579100	Heading: 6109.10.00	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Cotton T-shirt and cap set. No other garments included.	In regard to t-shirt and cap sets, caps are considered accessories to the garment with the set being classified as if a t-shirt.	
19579200	Heading: 6111.20.90	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Babies' knitted, unlined pilchers of cotton. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the babies' wet nappy and thus protect other clothing, bedding etc.	Pilchers are identified as garments not clothing accessories.	
19579300	Heading: 6111.30.90	Status: F
Instrument:	Date: 9/10/2009	Change_Date: 9/10/2009
Description:	Reason:	
Babies' knitted, unlined pilchers of synthetic fibres. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the	Pilchers are identified as garments not clothing accessories.	

babies' wet nappy and thus protect other clothing, bedding etc.

19579400 Heading: **6111.90.90**

Status: F

Instrument: Date: 9/10/2009 Change_Date: 9/10/2009

Description: Reason:

Babies' knitted, unlined pilchers of wool. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the babies' wet nappy and thus protect other clothing, bedding etc.

Pilchers are identified as garments not clothing accessories.

19579500 Heading: **6112.41.00**

Status: F

Instrument: Date: 9/10/2009 Change_Date: 9/10/2009

Description: Reason:

Child's unisex nylon swimsuit fitted with pockets designed to hold flotation cylinders. The cylinders, which can be progressively removed, provide adjustable buoyancy support for children learning to swim.

Identified as a children's unisex swimsuit incorporating an additional feature viz. pockets for flotation cylinders. Excluded from heading 6307 as they are a made up article of textile material more specifically included by another heading of Section XI.

20100800 Heading: **6115.10.10**

Status: F

Instrument: Date: 6/04/2011 Change_Date:

Description: Reason:

This precedent gives guidance on what forms of compression hosiery the Department of Immigration and Border Protection (DIBP) will accept as medical hosiery that may quote Item 33 of Schedule 4.

Compression hosiery is excluded from Chapter 90 on the basis of Chapter 90 Note 1(b). However if Note 1(b) did not exist, some compression hosiery designed to support a limb or limbs for medical purposes would be classifiable in Chapter 90. It is this range of medical hosiery that is eligible to receive the benefit of Item 33 of Schedule 4.

Graduated compression hosiery is elastic hosiery designed to compress the leg or legs, but which exerts the strongest pressure at the ankle, reducing proportionately up the leg. The compression strength or pressure of graduated medical compression stockings is expressed in mmHg (millimetres of mercury) of pressure the garment exerts at the narrowest part of the ankle. The mmHg is expressed as a range, for example stockings rated 20-30mmHg will, depending on the ankle size of the wearer, exert between 20 and 30mmHg pressure at the ankle.

There are two principal forms of medical hosiery; anti-embolism stockings (non-graduated) and graduated compression hosiery.

Compression hosiery has a range of uses dependent upon the compression level and design. Medical uses of graduated compression hosiery include, but are not limited to, treatment of lymphoedema, varicose ulcers or thrombophlebitis.

An anti-embolism stocking, also called TED (thrombo-embolic devices) stocking, is a non-graduated light compression stocking for use for non-ambulatory patients. It acts by accelerating venous return in patients who are lying down and hence helps to prevent thrombosis. These have an inspection opening just above or below the toes in order to check blood flow without removing the stockings. As the patient is not mobile, higher compression and graduated pressure is not required in these stockings. DIBP will accept such hosiery as being entitled to quote Item 33.

Non-graduated compression hosiery applies the same compression along its length.

It should be noted that the strength of graduated compression hosiery from Europe is normally specified in terms of classes and, optionally, by mmHg, while hosiery from the USA is expressed in mmHg. However, European and American methods of measuring mmHg vary and hence are often not directly comparable.

Provided the hosiery is solely or principally for medical purposes, DIBP will accept as medical hosiery graduated compression hosiery with either a compression level of European Class 2 or that has a starting point of its compression range at 20mmHg or above.

DIBP will also accept as medical hosiery TED (thrombo-embolic devices)/anti-embolism stockings designed for use on non-ambulatory patients with an inspection panel for checking blood flow to the foot.

DIBP will not routinely accept hosiery other than the above medical hosiery entitled to the benefit of Item 33. It is strongly recommended that if your goods may be entitled to Item 33, but are not covered by the descriptions above, that you request a Tariff Advice from DIBP.

Access to Item 33 is intended for medical hosiery excluded from Chapter 90 by Note 1(b). Item 33 does not apply to hosiery whose principal purpose is not medical.

Examples of compression hosiery NOT entitled to Item 33 include sports performance enhancement compression wear designed and sold for enhancing the sporting performance of health athletes, light

Some manufacturers now refer to graduated compression socks or stockings for mobile patients or for graduated compression travel socks as anti-embolism stocking/s or TED stocking/s. DIBP assesses this graduated hosiery as per other graduated compression hosiery in order to determine eligibility.

Not all compression hosiery is made specifically for medical purposes as compression hosiery also has a number of general well being or other uses. For example, light graduated compression can reduce the normal tendency to mild fluid retention that can occur in the lower legs during either prolonged standing or sitting. By doing this, it reduces the feelings of fatigue and ache from long standing, walking or sitting in the workplace or during travel. Hence there is compression hosiery manufactured to improve the comfort and feelings of well-being of people such as production line workers, nurses, long-distance travellers or other people who have to undergo prolonged periods of sitting, standing or walking. Light to moderate graduated compression sports garments, including hosiery, are used by some athletes and sports people to improve sports performance.

These are forms of compression hosiery that, while there may be benefits to health, are designed primarily for improving comfort or performance and hence would not be classifiable to Chapter 90 in the absence of Chapter 90 Note 1(b).

Generally, graduated compression hosiery with a starting compression range of 20 mmHG and above (or European Class 2 or above) is intended solely or principally for medical use. Hence DIBP will normally accept such hosiery as being entitled to quote Item 33. However, this does not apply if the specific goods are designed and manufactured for a non-medical primary purpose.

For additional information on the use of Item 33 see Schedule 4 Guidelines on the DIBP website.

compression hosiery for reducing the fatigue of standing and light compression travel socks designed principally to improve comfort during air travel.

End of Chapter 61	Number of records for Chapter: 20
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Section XI – TEXTILES AND TEXTILE ARTICLES

Chapter 62	Articles of apparel and clothing accessories, not knitted or crocheted
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19589700	Heading: 6203.41.00	Status: F
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Instrument:	Date: 12/10/2009	Change_Date: 12/10/2009
Description:	Reason:	
Belted trousers and shorts designed for males (men or boys) being trousers or shorts of wool or fine animal hair incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	

19589800	Heading: 6203.42.00	Status: F
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Instrument:	Date: 12/10/2009	Change_Date: 12/10/2009
Description:	Reason:	
Belted trousers and shorts designed for males (men or boys) being cotton trousers or shorts incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	

19589900	Heading: 6203.43.00	Status: F
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Instrument:	Date: 12/10/2009	Change_Date: 12/10/2009
Description:	Reason:	
Belted trousers and shorts designed for males (men or boys) being trousers or shorts of synthetic fibres, incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.	

19590000	Heading: 6203.49.00	Status: F
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Instrument:	Date: 12/10/2009	Change_Date: 12/10/2009
Description:	Reason:	
Belted trousers and shorts designed for males (men or boys) being trousers or shorts of fibres other than those covered by the previous subheadings of	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such	

8203.4, incorporating or presented with a belt of any material.		a set is given its essential character by the garment, being belted trousers or belted shorts.	
19590100	Heading: 6204.61.00	Status: F	
Instrument:	Date:	12/10/2009	Change_Date: 12/10/2009
Description:	Reason:		
Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of wool or fine animal hair incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.		
19590500	Heading: 6204.62.00	Status: F	
Instrument:	Date:	12/10/2009	Change_Date: 12/10/2009
Description:	Reason:		
Woven track suit pants of cotton, imported without tops.	Identified as a unisex garment, being trousers, and hence classified under Note 9 to Chapter 62 as trousers for women and girls. Trousers imported without the corresponding top cannot be classified to 6211 as a track suit as a track suit consists of two garments – a garment to cover the upper part of the body and a pair of trousers with no opening at the waist and therefore no buttons or other fastening system. The Harmonized System Explanatory Notes to heading 6112 elaborate on what is considered a track suit.		
19590200	Heading: 6204.62.00	Status: F	
Instrument:	Date:	12/10/2009	Change_Date: 12/10/2009
Description:	Reason:		
Belted trousers and shorts designed for females (women or girls) or for unisex use, being cotton trousers or shorts incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.		
19590300	Heading: 6204.63.00	Status: F	
Instrument:	Date:	12/10/2009	Change_Date: 12/10/2009
Description:	Reason:		
Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of synthetic fibres, incorporating or presented with a belt of any material.	The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.		
19590600	Heading: 6204.63.00	Status: F	
Instrument:	Date:	12/10/2009	Change_Date: 12/10/2009
Description:	Reason:		

Woven track suit pants of nylon or other synthetic fibres, imported without tops.

Identified as a unisex garment, being trousers, and hence classified under Note 9 to Chapter 62 as trousers for women and girls. Trousers imported without the corresponding top cannot be classified to 6211, as a track suit consists of two garments – a garment to cover the upper part of the body and a pair of trousers with no opening at the waist and therefore no buttons or other fastening system. The Harmonized System Explanatory Notes to heading 6112 elaborate on what is considered a track suit.

19590400 Heading: **6204.69.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Belted trousers and shorts designed for females (women or girls) or for unisex use, being trousers or shorts of fibres other than those covered by the previous subheadings of 8203.4, incorporating or presented with a belt of any material.

The goods as presented comprise of two components: the belt and the garment. Where the garment and belt are adapted to one another and are mutually complementary, the belt and trousers or shorts are identified as a set classifiable to the garment. It is considered that such a set is given its essential character by the garment, being belted trousers or belted shorts.

19590700 Heading: **6205.20.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – man or boy's cotton shirt.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19590800 Heading: **6205.30.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – man or boy's shirt of man-made fibres.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19590900 Heading: **6205.90.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – man or boy’s shirt of other textile materials.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19591000 Heading: **6206.10.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – woman or girl’s shirt of silk or silk waste.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19591100 Heading: **6206.20.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – woman or girl’s shirt of wool or fine animal hair.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19591200 Heading: **6206.30.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – woman or girl’s cotton shirt.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19591300 Heading: **6206.40.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – woman or girl’s shirt of man-made fibres.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19591500 Heading: **6206.90.00**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Shirt and tie set packed for retail sale – woman or girl’s shirt of textile materials not covered by the previous subheadings of 6206.

As woven ties are goods of 6215 and knitted or crocheted ties are goods of 6117, they are not textile garments for the purposes of Section 11 Note 14. Therefore it is open to classify a shirt and tie as a set, if they are imported as a set packed for retail sale. Shirt and tie combinations, imported as a set packed for retail sale, are to be classified upon the basis of Interpretive Rule 3(b). The essential character is given by the shirt. Classification therefore, should be to the classification within 6105, 6106, 6205 or 6206 as appropriate to the shirt.

19657500 Heading: **6208.91.00**

Status: F

Instrument:

Date: 8/12/2009 Change_Date: 8/12/2009

Description:

Reason:

Bath wraps being a rectangular shaped unisex garment made of woven cotton material. Also known as “shave wraps” or “sauna wraps”. The goods have hemmed edges and velcro fastenings. They usually include elasticized material in the hem on the side intended to go around the upper torso (women) or waist (men).

As they are unisex, Note 9 to Chapter 62 requires that they be classified in headings covering women’s or girls’ garments. Identified as a similar article to the garments specified in the terms of heading 6208. Bath wraps share with the garments specified in 6208 the following common characteristics: (1) they all serve the purpose of protecting the wearer’s modesty; (2) they cannot appropriately be worn as outer garments in the street; (3) they are tailored and hemmed, and (4) they do not have a function of restraining or securing parts of the body or other items of clothing as is possessed by the garments in heading 6212. (AAT decision Re: Endeavour Imports (Vic.) Pty. Ltd. and Collector of Customs Ref. V90/487 refers).

19657600 Heading: **6208.92.00**

Status: F

Instrument:

Date: 8/12/2009 Change_Date: 8/12/2009

Description:

Reason:

Elasticised pants containing less than 20% of elastomeric fibres with the predominant other fibre being man-made, e.g. pants made of a fabric which contains 85% nylon and 15% elasthane (an elastomeric fibre).

Although these may be described as a panty girdle, Additional Note 1 to Chapter 62 requires 20% or more elastomeric fibres for classification to 6212. Therefore these garments fall to 6208.

19591600 Heading: **6209.20.90**

Status: F

Instrument:

Date: 12/10/2009 Change_Date: 12/10/2009

Description:

Reason:

Babies' woven, unlined pilchers of cotton. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the babies' wet nappy and thus protect other clothing, bedding etc.

Pilchers are identified as garments not clothing accessories.

19591700 Heading: **6209.30.90**

Status: F

Instrument:

Date:

12/10/2009

Change_Date:

12/10/2009

Description:

Reason:

Babies' woven, unlined pilchers of synthetic fibres. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the babies' wet nappy and thus protect other clothing, bedding etc.

Pilchers are identified as garments not clothing accessories.

19591800 Heading: **6209.90.90**

Status: F

Instrument:

Date:

12/10/2009

Change_Date:

12/10/2009

Description:

Reason:

Babies' woven, unlined pilchers of wool. Pilchers are worn over the babies' nappy. Their main function is to prevent moisture seeping from the babies' wet nappy and thus protect other clothing, bedding etc.

Pilchers are identified as garments not clothing accessories.

20472000 Heading: **6211.42.00**

Status: F

Instrument:

Date:

28/05/2012

Change_Date:

Description:

Reason:

Cotton saris. Saris are rectangular pieces of woven fabric, approximately 4.5 to 5.5.m in length and 122 centimetres wide, designed to be worn draped around the body from the shoulder to the ankles.

Saris made of cotton fall to 6211.42.00.

The saris that fall within this precedent meet the following criteria.

1. They are made from lightweight woven fabrics of cotton.

2. They have two selvages running along the length of the fabric.

3. At least one of the two shorter edges is finished off by hemming, fringing, drawn thread work or any other method specified in Note 7 to Section XI of the Tariff.

A sari may also be approximately one metre longer than the standard length. This additional piece of material may be detached by the wearer and used to make the choli, or blouse, traditionally worn with a sari. The point of division between the sari proper and the additional piece is made obvious by a line of drawn thread work across the width of the fabric or by a change in the pattern.

Such 'composite' articles are classified as saris providing at least one of the shorter ends is made up within the terms of Note 7 to Section XI of the Tariff.

Saris with two selvages and two raw ends are not covered by this precedent. 'Composite' saris with the additional piece which have two selvages and two raw ends are not covered. These goods with the two raw ends are classified as fabric in the piece even though they may be wearable in this form.

19591900	Heading: 6211.42.00	Status: F
Instrument:	Date: 12/10/2009	Change_Date: 12/10/2009
Description:	Reason:	
Apron made of plastic-coated woven cotton fabric.	The goods are identified as being a garment.	
20472100	Heading: 6211.43.00	Status: F
Instrument:	Date: 28/05/2012	Change_Date:
Description:	Reason:	
Saris of fabrics woven from man-made fibres. Saris are rectangular pieces of woven fabric, approximately 4.5 to 5.5.m in length and 122 centimetres wide, designed to be worn draped around the body from the shoulder to the ankles.	Saris made of man-made fibres (as defined in Chapter 54 Note 1) falls to 6211.43.00	

The saris that fall within this precedent meet the following criteria.

1. They are made from lightweight woven fabrics of man-made fibres.

2. They have two selvages running along the length of the fabric.

3. At least one of the two shorter edges is finished off by hemming, fringing, drawn thread work or any other method specified in Note 7 to Section XI of the Tariff.

A sari may also be approximately one metre longer than the standard length. This additional piece of material may be detached by the wearer and used to make the choli, or blouse, traditionally worn with a sari. The point of division between the sari proper and the additional piece is made obvious by a line of drawn thread work across the width of the fabric or by a change in the pattern.

Such 'composite' articles are classified as saris providing at least one of the shorter ends is made up within the terms of Note 7 to Section XI of the Tariff.

Saris with two selvages and two raw ends are not covered by this precedent. 'Composite' saris with the additional piece which have two selvages and two raw ends are not covered. These goods with the two raw ends are classified as fabric in the piece even though they may be wearable in this form.

20472200	Heading: 6211.49.00	Status: F
Instrument:	Date: 28/05/2012	Change_Date:
Description:	Reason:	
Saris of fabrics woven from textile materials other than cotton or man-made fibres. Saris are rectangular pieces of woven fabric, approximately 4.5 to 5.5.m in length and 122 centimetres wide, designed to be worn draped around the body from the shoulder to the ankles.	Saris of made from other woven textile materials fall to 6211.49.00	

The saris that fall within this precedent meet the following criteria.

1. They are made from lightweight woven fabrics of man-made fibres.
2. They have two selvages running along the length of the fabric.
3. At least one of the two shorter edges is finished off by hemming, fringing, drawn thread work or any other method specified in Note 7 to Section XI of the Tariff.

A sari may also be approximately one metre longer than the standard length. This additional piece of material may be detached by the wearer and used to make the choli, or blouse, traditionally worn with a sari. The point of division between the sari proper and the additional piece is made obvious by a line of drawn thread work across the width of the fabric or by a change in the pattern.

Such 'composite' articles are classified as saris providing at least one of the shorter ends is made up within the terms of Note 7 to Section XI of the Tariff.

Saris with two selvages and two raw ends are not covered by this precedent. 'Composite' saris with the additional piece which have two selvages and two raw ends are not covered. These goods with the two raw ends are classified as fabric in the piece even though they may be wearable in this form.